

**CHAFFEE COUNTY COLORADO
ORDINANCE NO. 2026-01**

**AN ORDINANCE AMENDING THE 2021 INTERNATIONAL ENERGY CONSERVATION
CODE**

WHEREAS, the Chaffee County Board of County Commissioners recognizes that adopting supporting amendments to the 2021 International Energy Conservation Code ("IECC") will improve the construction and maintenance of the built environment and will thereby promote the health, safety, resiliency, affordability, sustainability, and general welfare of our community; and

WHEREAS, buildings are responsible for 40 percent of greenhouse gas emissions in the United States, and reducing building greenhouse emissions is essential for reducing the impacts of climate change, including mitigating local disaster events such as wildfires, droughts, and other severe weather; and

WHEREAS, Chaffee County desires to collaborate with other Colorado communities to adopt a consistent version of the IECC amendments;

NOW, THEREFORE, BE IT ORDAINED BY THE BOARD OF COUNTY COMMISSIONERS OF CHAFFEE COUNTY the following:

Section 1. The Board of Chaffee County Commissioners hereby makes and adopts the determinations and findings contained in the recitals set forth above.

Section 2. Chaffee County Colorado Ordinance 2023-02 is hereby amended to include the following.

The IECC is amended as follows, with additions in underline and deletions in ~~striketrough~~:

COMMERCIAL:

1. **Section C202 GENERAL DEFINITIONS** is amended to add or revise the following definitions in alphabetical order:

ALL-ELECTRIC BUILDING. A building and building site that contains no combustion equipment, or plumbing for combustion equipment, and that uses radiant electric heating or heat pump technology as the primary supply for heating, cooling, and service water heating loads.

MIXED-FUEL BUILDING. A building and building site that contains combustion equipment, or plumbing for combustion equipment, for space heating, cooling, water heating (including pools and spas), cooking, or clothes drying.

2. Section C401.2.1, International Energy Conservation Code, item 2, is amended to read as follows:

2. Total Building Performance. The Total Building Performance option requires compliance with Section C407 and, for mixed fuel buildings, 10 credits from Tables C406.1(1) through C406.1(5).

3. Section C401.2.2 ASHRAE 90.1 is amended to read as follows:

C401.2.2 ASHRAE 90.1. Commercial buildings shall comply with the requirements of ANSI/ASHRAE/IESNA 90.1 and, for mixed fuel buildings, 10 credits from Tables C406.1(1) through C406.1(5).

4. Section C404.2.1 High input service water-heating systems, item 1 under exceptions, is amended to read as follows:

1. Where not less than 50 percent of the annual *service water heating* requirement is provided by *on-site renewable energy* or site-recovered energy not including any capacity used for compliance with Section C406 of this code, the minimum thermal efficiency requirements of this section shall not apply.

5. Section C404.10 is added as follows:

C404.10 Water heating equipment location. Water heaters with *combustion equipment* shall be located in a space with the following characteristics:

1. Minimum dimensions of 3 feet by 3 feet by 7 feet high.
2. Minimum volume of 760 cubic feet, or the equivalent of one 16-inch by 24-inch grill to a heated space and one 8-inch duct of no more than 10 feet in length for cool exhaust air.
3. Contains a condensate drain that is no more than 2 inches higher than the base of the installed water heater and allows natural draining without pump assistance, installed within 3 feet of the water heater.

Exceptions:

1. Instantaneous water heaters located within 10 feet of the point of use.
2. Water heaters with an input capacity of more than 300,000 Btu/h.

6. Section C405.5.3 Gas lighting is amended to read as follows:

Section C405.5.3. Gas lighting. Gas fired lighting appliances ~~shall not be equipped with continuously burning pilot ignition systems~~ are not permitted.

7. Section C406.1 Additional energy efficiency credit requirements, first sentence, is amended to read as follows with the other parts of the paragraph and section to remain:

C406.1 Additional energy efficiency credit requirements. New *all-electric buildings* shall achieve a total of 10 credits and new mixed-fuel buildings shall achieve a total of 15 credits from Tables C406.1(1) through C406.1(5) where the table is selected based on the use group of the building and from credit calculations as specified in relevant subsections of C406.

8. TABLE C406.1(2) ADDITIONAL ENERGY EFFICIENCY CREDITS FOR GROUP R AND I OCCUPANCIES is retained in its entirety, except Sections C406.7.3 and C406.7.4 in Climate Zone 6B are amended to read as follows:

TABLE C406.1(2)
ADDITIONAL ENERGY EFFICIENCY CREDITS FOR GROUP R AND I OCCUPANCIES

SECTION	CLIMATE ZONE 6B
C406.7.3: Efficient fossil fuel water heater ^b	<u>9 9</u>
C406.7.4: Heat pump water heater ^b	<u>5 9</u>

9. TABLE C406.1(3) ADDITIONAL ENERGY EFFICIENCY CREDITS FOR GROUP E OCCUPANCIES is retained in its entirety, except Sections C406.7.3 and C406.7.4 in Climate Zone 6B are amended to read as follows:

TABLE C406.1(3)
ADDITIONAL ENERGY EFFICIENCY CREDITS FOR GROUP E OCCUPANCIES

SECTION	CLIMATE ZONE 6B
C406.7.3: Efficient fossil fuel water heater ^a	<u>3 3</u>
C406.7.4: Heat pump water heater ^a	<u>1 3</u>

a. For schools with showers or full-service kitchens.

10. TABLE C406.1(5) ADDITIONAL ENERGY EFFICIENCY CREDITS FOR OTHER OCCUPANCIES is retained in its entirety, except Sections C406.7.3 and C406.7.4 in Climate Zone 6B are amended to read as follows:

TABLE C406.1(5)
ADDITIONAL ENERGY EFFICIENCY CREDITS FOR OTHER^a OCCUPANCIES

SECTION	CLIMATE ZONE 6B
C406.7.3: Efficient fossil fuel water heater ^b	<u>9 9</u>
C406.7.4: Heat pump water heater ^b	<u>5 9</u>

a. Other occupancies include all groups except Groups B, E, I, M, and R.

b. For occupancy groups listed in Section 406.7.1

11. TABLE C407.2 REQUIREMENTS FOR TOTAL BUILDING PERFORMANCE is retained in its entirety and amended to add the following items:

TABLE C407.2
REQUIREMENTS FOR TOTAL BUILDING PERFORMANCE

SECTION	TITLE
Envelope	
<u>C401.3</u>	<u>Thermal envelope certificate</u>

C402.2.4	<u>Slabs-on-grade</u>
C402.2.6	<u>Insulation of radiant heating system</u>

RESIDENTIAL:

12. **Section R103.2 Information on construction documents**, is amended by modifying item 6 as follows:

6. Mechanical and service water-heating systems and equipment types, sizes, fuel sources, and efficiencies.

13. **Section R202 GENERAL DEFINITIONS** is amended to add the following definitions in alphabetical order:

ALL-ELECTRIC BUILDING. A building and building site that contains no combustion equipment, or plumbing for combustion equipment, and that uses radiant electric heating or heat pump technology as the primary supply for heating, cooling, and service water heating loads.

MIXED-FUEL BUILDING. A building and building site that contains combustion equipment, or plumbing for combustion equipment, for space heating, cooling, water heating (including pools and spas), cooking, or clothes drying.

14. Section R401.2.5 Additional energy efficiency is amended as follows:

R401.2.5 Additional energy efficiency. This section establishes additional requirements applicable to all compliance approaches to achieve additional energy efficiency.

1. For buildings complying with Section R401.2.1, ~~one of the additional efficiency package options shall be installed according to Section R408.2~~ the building shall meet one of the following:

- 1.1. For all-electric buildings, one of the additional efficiency package options shall be installed according to Section R408.2.

- 1.2. For mixed-fuel buildings, two of the additional efficiency packages shall be installed, at least one of which addresses the envelope.

2. For buildings complying with Section R401.2.2, the building shall meet one of the following:

- 2.1. For all-electric buildings, one of the additional efficiency package options in Section R408.2 shall be installed without including such measures in the proposed design under Section R405.; ~~or~~

- 2.2. For all-electric buildings, the proposed design of the building under Section R405.3 shall have an annual energy cost that is less than or equal to 95 percent of the annual energy cost of the standard reference design.

- 2.3. For mixed-fuel buildings, three of the additional efficiency packages shall be installed, at least one of which addresses the envelope, without including such measures in the proposed design under Section R405.

- 2.4. For mixed-fuel buildings, the proposed design of the building under Section R405.3 shall have an annual energy cost that is less than or equal to 80 percent of the annual energy cost of the standard reference design.

3. For buildings complying with the Energy Rating Index Alternative Section R401.2.3, the Energy Rating Index value shall be at least 5 percent less than the Energy Rating Index target specified in Table R406.5.

The options selected for compliance shall be identified in the certificate required by Section R401.3.

15. **Section R401.3 Certificate**, item 4, is amended and new items 8 and 9 are added as follows:

4. The types, sizes, fuel sources, and efficiencies of heating, cooling and service water heating equipment. Where a gas-fired unvented room heater, electric furnace or baseboard electric heater is installed in the residence, the certificate shall indicate "gas-fired unvented room heater," "electric furnace" or "baseboard electric heater," as appropriate. An efficiency shall not be indicated for gas-fired unvented room heaters, electric furnaces and electric baseboard heaters.
8. The fuel sources for cooking and clothes drying equipment.
9. Where combustion equipment is installed, the certificate shall indicate information on the installation of additional electric infrastructure including which equipment and/or appliances include additional electric infrastructure, capacity reserved on the electrical service panel for replacement of each piece of combustion equipment and/or appliance.

16. Section R403.5 Service hot water systems is amended as follows:

R403.5 Service hot water systems. Energy conservation measures for service hot water systems shall be in accordance with Sections R403.5.1 through ~~R403.5.3~~ R403.5.4.

17. Section R403.5.4 Water heating equipment location is added as follows:

R403.5.4 Water heating equipment location. Water heaters with *combustion equipment* shall be located in a space with the following characteristics:

1. Minimum dimensions of 3 feet by 3 feet by 7 feet high.
2. Minimum volume of 760 cubic feet, or the equivalent of one 16-inch by 24-inch grill to a heated space and one 8-inch duct of no more than 10 feet in length for cool exhaust air.
3. Contains a condensate drain that is no more than 2 inches higher than the base of the installed water heater and allows natural draining without pump assistance, installed within 3 feet of the water heater.

Exceptions:

1. Instantaneous water heaters located within 10 feet of the point of use.
2. Water heaters with an input capacity of greater than 300,000 Btu/h that serves multiple dwelling units or sleeping units.

18. Section R404.1.2 Fuel gas lighting is amended to read as follows:

Section R404.1.2. Fuel gas lighting equipment. Fuel gas lighting systems ~~shall not have continuously burning pilot lights~~ are prohibited.

19. A new Section R404.4 Additional electric infrastructure is added as follows:

R404.4 Additional electric infrastructure. All combustion equipment shall be installed in accordance with Section R403.5.4 and shall be provided with a junction box that is connected to an electrical panel by continuous raceways and or conductors that meet the following requirements:

1. The junction box, raceway, and bus bar in the electric panel and conductors serving the electric panel and future equipment shall be sized to accommodate electric equipment sized to serve the same load as the combustion equipment.
2. The panel shall have reserved physical space for a dual-pole circuit breaker.
3. The junction box and electrical panel directory entry for the dedicated circuit breaker space shall have labels stating, "For future electric equipment."
4. The junction box shall allow for the electric equipment to be installed within the same place of the combustion equipment that it replaces.

Exceptions:

1. Fossil fuel space heating equipment where a 208/240-volt electrical circuit with a minimum capacity of 40 amps exists for space cooling equipment.
2. Water heating equipment with an input capacity greater than 300,000 Btu/h that serves multiple dwelling units or sleeping units.

20. Table R405.2 Requirements for Total Building Performance adds a new row under Mechanical as follows:

TABLE R405.2 REQUIREMENTS FOR TOTAL BUILDING PERFORMANCE

SECTION	TITLE
Mechanical	
R403.5.4	<u>Water heating equipment location</u>

21. Table R406.2 Requirements for Energy Rating Index adds a new row under Mechanical as follows:

TABLE R406.2 REQUIREMENTS FOR ENERGY RATING INDEX

SECTION	TITLE
Mechanical	
R403.5.4	<u>Water heating equipment</u>

22. Section R406.5 ERI-based compliance is amended as follows:

R406.5 ERI-based compliance. Compliance based on an ERI analysis requires that the rated proposed design and confirmed built dwelling be shown to have an ERI less than or equal to the appropriate value for the proposed all-electric or mixed-fuel building as indicated in Table R406.4 when compared to the ERI reference design.

TABLE R406.5 MAXIMUM ENERGY RATING INDEX

CLIMATE ZONE	ALL-ELECTRIC BUILDING	<u>MIXED FUEL BUILDING</u>
6	54	<u>50</u>

SECTION 3. EFFECTIVE DATE

This ordinance shall take effect 30 days after publication as required by law

ADOPTED BY THE BOARD OF COUNTY COMMISSIONERS THIS 19th DAY OF MAY, 2026.

BOARD OF COUNTY COMMISSIONERS

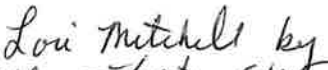
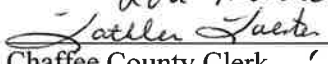

Gina Lucrezi, Chair

STATE OF COLORADO
CHAFFEE COUNTY

ATTEST:

The above is a true and correct record of Ordinance 2026-01 duly and unanimously adopted by the Board of County Commissioners of Chaffee County at a regular meeting, properly noticed and held on May 19, 2026, at least ten days following introduction and reading of the proposed ordinance on April 21, 2026, and publication of the proposed ordinance on April 30, 2026 in the Chaffee County Times and the Mountain Mail.

Adopted Ordinance Published by title in the Chaffee County Times and the Mountain Mail on May 28, 2026.



Chaffee County Clerk

